

DOCUMENT 02 — VEHICLE CONDITION ACCEPTANCE, AFTER-SALES WAIVER AND LIABILITY RELEASE FORM

Formulaire d'Acceptation de l'État du Véhicule, de Renonciation au Service Après-Vente et de Décharge de Responsabilité

COMPLETION SHEET (fillable)

Type directly into the fields below (Adobe Acrobat, Foxit, or any modern browser). Values entered here complete the corresponding [bracketed] placeholders in the body text that follows.

Form No.

Annex to Agreement No.

Date

Place

Broker — name / RC / NIF

Buyer — full name

Buyer — ID / Passport No.

Vehicle — make / model

VIN

First registration (China)

Motorisation

Odometer (km)

Inspection body

Inspection report No.

Inspection date

Incoterm (e.g. CIF Algiers / FOB Shanghai)

Prepared by (Broker) signature field / Client signature field:

Broker:

Client:

IMPORTANT NOTICE TO THE BUYER — READ BEFORE SIGNING. This document contains waivers of rights and releases of liability. By signing, you accept the Vehicle in its current condition and renounce recourse against the Broker for the matters described herein. You are advised to seek independent legal advice before signing. **This form must be signed BEFORE the Vehicle is shipped from the Chinese port. No shipment will be booked without it.**

Parties and Vehicle

THE BROKER (Facilitator): [FULL LEGAL NAME], RC No. [____], NIF [____], address [____] — acting strictly as service provider/facilitator under Facilitation Agreement No. [____], and **not as seller, importer, dealer or manufacturer** of the Vehicle.

THE BUYER (Importer of Record): Mr./Mrs. [FULL NAME], ID/Passport No. [____], resident at [____] — sole purchaser of the Vehicle from the Chinese Supplier and sole importer of record.

THE VEHICLE: [Make/Model/Trim], VIN [____], first registered in China on [DD/MM/YYYY], motorisation [Petrol ____cc / Hybrid ____cc / 100% Electric], odometer [____] km as per the Inspection Report defined below.

Clause 1 — Basis of Purchase: the Inspection Report

1.1 The Buyer acknowledges that the Vehicle is a **used / export vehicle** purchased from the Chinese Supplier **strictly “AS-IS, WHERE-IS”**, on the sole basis of the third-party inspection report identified below (the “**Inspection Report**”), a complete copy of which is attached as **Annex 1** and initialed on every page by the Buyer:

Item	Value
Inspection body	[e.g. AutoCango inspection / CCIC / other]
Report reference No.	[____]
Inspection date	[DD/MM/YYYY]
Odometer at inspection	[____] km

1.2 The Buyer confirms having **received, read and understood the entire Inspection Report** — including all photographs, defect notations, paint/panel readings and condition grades — **before** signing this Form, and having had the opportunity to ask questions and to commission, at the Buyer's own cost, any additional independent inspection. The Buyer's decision not to commission further inspection is the Buyer's alone.

1.3 The Inspection Report is issued by an independent third party; the Broker **did not perform the inspection, does not certify its content, and assumes no responsibility for its accuracy or completeness**. Any claim regarding the Inspection Report lies against its issuer and/or the Chinese Supplier exclusively.

Buyer's initials: _____

Clause 2 — Hidden Mechanical and Electrical Defects

2.1 The Buyer accepts that a used vehicle may present wear, deterioration and **defects not detectable at inspection**, whether mechanical, electrical, electronic or software-related, and purchases the Vehicle with full knowledge of this risk.

2.2 To the maximum extent permitted by Algerian law, the Buyer **releases the Broker from any claim based on hidden defects (vices cachés), apparent defects, wear or non-conformity** of the Vehicle, and acknowledges that the statutory hidden-defects warranty, where applicable, binds **the seller of the Vehicle — the Chinese Supplier — and not the Broker**, who at no time held title to the Vehicle.

2.3 Odometer readings, service history and accident history of vehicles sourced in China are stated by the Chinese Supplier and/or the Inspection Report; the Broker transmits these in good faith without verification capability and **makes no representation as to their accuracy**.

Buyer's initials: _____

Clause 3 — Battery, Software and Charging (EVs and Hybrids)

Applicable if the Vehicle is electric or hybrid — strike out if not applicable.

3.1 **Battery State of Health (SOH).** Traction-battery capacity degrades with time, mileage, charging habits and climate; any SOH figure in the Inspection Report is a **measurement at a point in time, not a guarantee of future performance**; heat conditions prevailing in Algeria may accelerate degradation. **The Broker gives no warranty whatsoever regarding battery SOH, remaining capacity, range or battery lifespan**, and shall not be liable for any battery degradation, failure or replacement cost, whenever occurring.

3.2 **Software and updates.** The Vehicle is a Chinese-domestic-market unit. Infotainment, navigation and voice systems may function only in Chinese; over-the-air (OTA) updates, connected services and manufacturer applications **may be unavailable, degraded or discontinued outside China**; the Broker has no ability to provide, restore or localise any software function. No software limitation shall constitute a defect or ground for claim against the Broker.

3.3 **Charging compatibility.** The Vehicle is equipped with **GB/T charging ports** (Chinese standard), not natively compatible with European CCS/Type 2 infrastructure that may exist in Algeria; adapters, where they exist, are third-party products used at the Buyer's own risk; home-charging installation, adapter sourcing and any charging-related cost or damage are **entirely the Buyer's responsibility**.

3.4 **Manufacturer warranty void.** The Buyer acknowledges having been expressly informed that the manufacturer's warranty attached to the Vehicle in China **does not follow the Vehicle to Algeria** and will generally not be honoured by the manufacturer's official Algerian distributor, the Vehicle being a parallel import.

Buyer's initials: _____

Clause 4 — Total Warranty Exclusion

4.1 THE BROKER PROVIDES NO WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION ANY WARRANTY OF MERCHANTABILITY, ROADWORTHINESS, FITNESS FOR A PARTICULAR PURPOSE, CONFORMITY, DURABILITY OR FUTURE PERFORMANCE OF THE VEHICLE, ITS ENGINE, TRANSMISSION, TRACTION BATTERY, ELECTRONICS OR ANY COMPONENT WHATSOEVER.

4.2 ANY REPAIR, MAINTENANCE, PART REPLACEMENT, SOFTWARE INTERVENTION OR BATTERY REPLACEMENT REQUIRED AFTER DELIVERY — WHATEVER ITS CAUSE, COST OR DATE OF OCCURRENCE — IS 100% THE FINANCIAL RESPONSIBILITY OF THE BUYER.

4.3 THE BROKER OPERATES NO AFTER-SALES SERVICE, NO PARTS SUPPLY AND NO REPAIR NETWORK, AND HAS MADE NO ORAL OR WRITTEN PROMISE TO THE CONTRARY. ANY STATEMENT NOT RECORDED IN THIS FORM IS OF NO EFFECT.

The Buyer confirms this Clause 4 was **read aloud and expressly approved**.

Buyer's initials: _____

Clause 5 — Transfer of Risk

5.1 All risk of loss, damage, deterioration or theft passes in accordance with the sale terms between the Buyer and the Chinese Supplier and the applicable Incoterm [specify: _____]. **In no case does the Broker bear transit risk.** Marine insurance is the Buyer's responsibility [unless included by the Supplier under CIF — verify Annex B of the Facilitation Agreement].

5.2 From the moment the Vehicle **leaves the Chinese port**, no mechanical, electrical, battery or software condition may found any claim against the Broker.

Buyer's initials: _____

Clause 6 — Indemnity, Release and Waiver of Recourse

6.1 To the maximum extent permitted by Algerian law, the Buyer **irrevocably and definitively releases the Broker**, its managers, employees and agents from any claim, action or demand — contractual, tortious (responsabilité civile délictuelle) or otherwise — arising from or connected to: the condition of the Vehicle; hidden or apparent defects; battery degradation; software or charging limitations; odometer or history inaccuracies; or any mechanical or electrical failure occurring **after the Vehicle's departure from the Chinese port**.

6.2 The Buyer consequently **waives**: (a) any action for refund, price reduction or rescission directed against the Broker; (b) any withholding, suspension or claw-back of the Facilitation Fee or of any sum due under the Facilitation Agreement, on grounds of Vehicle condition; (c) any opposition to payment instruments issued in the Broker's favour on such grounds.

6.3 The Buyer shall **indemnify and hold the Broker harmless** against any third-party claim (family member, subsequent purchaser, insurer, financier) relating to the condition of the Vehicle.

6.4 **Statutory reservation.** This release does not cover, and cannot cover under Algerian law, damage caused by the Broker's own fraud (dol), gross negligence (faute lourde) or bodily injury — the sole statutory exceptions. Should any part of this Clause be held excessive, it shall be reduced to the maximum scope permitted rather than annulled.

Buyer's initials: _____

Clause 7 — Buyer's Informed-Consent Declarations

#	Declaration	Initials
a	I have read the full Inspection Report (Annex 1) and accept the Vehicle's condition as described.	_____
b	I know I am buying a used/export vehicle "AS-IS" with no Broker warranty.	_____
c	I know the manufacturer's Chinese warranty will not apply in Algeria.	_____
d	(EV/Hybrid) I accept all battery SOH, software and GB/T charging-compatibility risks.	_____
e	I know all post-delivery repairs are at my sole cost.	_____
f	I had the opportunity to consult a lawyer and a mechanic of my choice before signing.	_____
g	I sign freely, without pressure, and no oral promise was made beyond this document.	_____

Clause 8 — Governing Law, Language and Final Provisions

8.1 This Form is governed by **Algerian law**; disputes fall under the **exclusive jurisdiction of the territorially competent courts of [CITY/WILAYA]**, consistently with Article 11 of the Facilitation Agreement. 8.2 This Form forms an integral part of Facilitation Agreement No. [____]; in case of conflict on liability matters, **this Form prevails**. 8.3 Executed in [Arabic/French]; the **[Arabic]** version prevails. Two (2) originals, one per Party. Annex 1 (Inspection Report, [____] pages, initialed) is inseparable from this Form.

THE BUYER — signature preceded by the handwritten words: *"Read and approved — I accept the vehicle as-is and release the Broker as stated above"* (Arabic formula to be inserted in the notarized/translated version).

THE BUYER Name — Date — Signature	THE BROKER Name / stamp — Signature
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